DIVISION BENCH ITEM NO.126

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.15/ALD/2022 in CA (CAA) No.12/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 3rd October, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**BLOOMING JEWELLERY PVT. LTD. WITH LALJI SARRAF PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Kartikeya Goel, Adv. *: For the Petitioner Company*

Sh. Krishna Dev Vyas, Adv. *: For the ROC*

Sh. Niraj Kumar Singh, Proxy for Sh. Gaurav Mahajan, Sr. Standing Counsel *: For the I.T. Deptt.*

Sh. Rajneesh Kumar Singh, O.L. Allahabad *: For the O.L. Alld./ RD (NR)*

ORDER

Ld. Counsels representing the parties are present.

1. In this case, the reports of the Income Tax Department have been filed directly with the Registry of this Tribunal. A communication dated 23.11.2022 is sent by the office of the Income Tax Officer, Lucknow with respect to the Transferee Company stating therein that there is no outstanding demand in respect of the company, and therefore having no objection. Another communication has been sent by the letter dated 09.05.2023 by the office of the Assistant Commissioner of the Income Tax, Kolkata stating that with respect to the Transferor Company, there is no objection with respect to the proposed scheme of amalgamation.

2. The reports with respect to the RD as well as OL, have been filed. It is stated by the Ld. Counsel representing the Petitioner that in pursuance of the publication made on 14.09.2022 and on having received no objection arising therefrom, an affidavit has been filed on 03.11.2022 stating that neither the petitioner company nor their legal counsel have received any objection/ representation from any person against the petition or against the proposed scheme of amalgamation.

3. Arguments heard. Order reserved.

-Sd- ***-Sd-***

(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

3rd October, 2023
Kavya Prakash Srivastava
(Stenographer)